

Administrator's fees of \$35,000 are reasonable and are approved.

The requested representative payment of \$10,000 for each plaintiff is reviewed under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Each plaintiff has filed a declaration attesting to their role in the case. They each attest that they took some risk of having their role as a plaintiff hurt future employment opportunities. Each signed a general release, although none indicate that they had any other claims of substantial value. Each attest to the number of hours they spent on the matter. (Frazier 50 hours, McDaniel 25 hours, Myers 35 hours, Hall 40-45 hours.) Considering the relevant criteria, including the size of the overall recovery, the request for \$10,000 each is approved.

C. Conclusion

The Court finds that the proposed settlement is fair, reasonable, and adequate and **grants the motion for approval**. Counsel are directed to prepare an order reflecting this tentative ruling, as well as the other findings in the proposed order. They also are directed to prepare a judgment. The judgment must provide for a compliance hearing after the settlement has been completely implemented. It also should identify the 18 individuals who requested exclusion, so that if they ever bring an action, it is not difficult for them to establish that they are not bound by the settlement. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. The compliance shall be determined in consultation with the Department 39 clerk, but shall be set for hearing in Department 16. As of March 1, 2026, this matter is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.

Courtroom Clerk's Calendar

13. 10:00 AM CASE NUMBER: MS25-0288
CASE NAME: CLAYTON GARDENS VS. NATHAN PARSONS
HEARING ON SUMMARY MOTION
FILED BY:

TENTATIVE RULING:

Appearances required. Pursuant to CRC 3.1351, opposition and reply may be given orally at the hearing. (The Court has received and reviewed plaintiff's opposition.) Accordingly, no tentative ruling will be issued.